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POLICY NUMBER: **FP-RM-015**

**Control and Access to Safe Deposit Box
and Guestroom Safe**

POLICY STATEMENT

Standardize the issuance, access to, and availability of safe deposit boxes and guestroom safes in accordance with local law.

POLICY SUMMARY

The following policy does not cover every detail of the operation or all the unusual situations which may arise, but does set out the basic policy which will serve as minimum requirements for hotel-level safe deposit box and guestroom safe procedures. Hotels are to follow these procedures and laws specific to the control of safe deposit boxes and guestroom safes in their country, local, provincial or state jurisdictions.

APPLICABILITY

All managed hotels.

EXCLUSIONS/EXCEPTIONS

No exclusions.

POLICY DETAILS

A. General Requirements

The General Manager, with the advice and assistance of his/her Director of Finance or General Manager Designee "Designee" and Director of Safety and Security, will develop and monitor safe deposit procedures for the property and will make periodic checks of the safe deposit operation to ensure compliance with established procedures. The Designee will work with internal Operations counsel (who will engage local legal counsel on behalf of the hotel) to comply with any local ordinances regulating the Innkeeper's liability in connection with the handling and safekeeping of guest valuables. The Designee will prepare a policy or procedure for the hotel, which will take into account these procedures, as well as those recommended by local counsel.

The "Designee" shall make quarterly audits of safe deposit procedures in compliance FP-OPSFIN-019 Safety Deposit Box Audit Policy to (1) assure that the established procedure is adequate to protect against loss and liability; and, (2) verify the established procedure is adhered to in day-to-day operations. The "Designee" is to maintain a lock change log of all losses of keys, all changes of locks and safe deposit boxes and of all forcing of safe deposit box doors. This record is to be maintained according to the Hilton Records Management Policy HWI-LG-010.

The maintenance and availability of safe deposit boxes for guests is required by some local jurisdictional laws and can limit its liability for guest valuables not deposited in the safe deposit boxes. A sufficient number of safe deposit boxes are to be available to satisfy the needs of our hotel guests. The "Designee" should monitor the hotel's demand for same and adjust the number of boxes as appropriate.

B. Authorized Personnel

All Guest Service Agents (GSA's) or Safe Deposit Box Attendants, where that position exists, are to be thoroughly trained in proper safe deposit procedure and be aware of the reasons for the various rules and procedures. Where a GSA or Safe Deposit Box Attendant is not required, the Designee will ensure that all relevant staff are trained on the hotel's procedures.

C. Supervision

Supervision of this function on each shift is to be clearly assigned. The supervisor is to impress upon GSA's, Safe Deposit Box Attendants or other relevant team members the importance and seriousness of this responsibility and require an immediate report of any unusual incidents and an accurate up-to-date record including complete compliance with procedures.

D. Protection of Vault Area and Equipment

Safe deposit boxes are to be located in accordance with the Design and Construction Standards. Unauthorized persons, whether guests or team members, are not permitted in the area. Closed circuit television (CCTV) surveillance camera(s) are to be permanently installed in safe deposit box area viewing the team member handing the safe deposit box to the guest and the safe deposit box area only. The guest viewing area should not have CCTV.

E. Handling Claims

Any report of property missing from a guest safe deposit box is to be immediately brought to the attention of the General Manager and the "Designee". The hotel's representative is also to be promptly advised so that a security incident report can be initiated.

F. Control of Keys

Control of Keys to un-issued Boxes and Spare Locks

Strict controls are to be established for the storage of un-issued keys, issuing of keys, and receiving of keys upon surrender.

Keys to unused boxes are to be stored in a place not accessible to unauthorized team members or to guests. Access to un-issued keys is to be limited to GSA's, Safe Deposit Box Attendants or authorized personnel in accordance with standard Key Control Policies. The GSA or Safe Deposit Box Attendant is to return each key for a surrendered safe deposit box as soon as the box is surrendered. Spare locks keys and locks out for repair are to be documented and controlled. At no time are keys to be stored in unoccupied safe deposit boxes.

Guard Key

Only those persons authorized to grant access to boxes are to have possession and control of the guard key. The guard key is not to be taken from the safe deposit area and is to be accounted for at each change of shift.

No Duplicate Keys to Guest Safe Deposit Boxes

Under no circumstances are duplicate keys to any guest safe deposit box be maintained by the hotel management, security, or any other unit or person. When new locks are installed, any duplicate keys are to be destroyed, witnessed with a notation made in the lock change log maintained by the "Designee".

Identification on Key

The only identification on the key is to be the stamped number of the safe deposit box. No key tags shall be used for any purpose.

Lost Keys

When a key loss is reported, the safe deposit box keyhole is to be plugged, a keyhole signal used, and notation made on the signature record as an additional precaution against improper access with the missing key. The box is to be drilled after efforts by the guest to locate the missing key have been exhausted and only when the guest or his/her legally authorized agent is present. A GSA or Safe Deposit Box Attendant and one of the following management personnel will be present at the time of drilling and opening of the box: Designee, Director of Safety and Security, or other management representatives authorized in writing by the General Manager. A written record shall be maintained according to the Hilton Records Management Policy HWI-LG-010.

The drilled lock is to be promptly replaced so there are a maximum number of boxes always available for our guests. A minimal charge covering the costs of labor and materials may be billed to the guest that misplaced the key.

Key Received By Mail

When a key is received through the mail, it is to be delivered to "Designee", put in a sealed envelope, signed for and witnessed by one other team member. In this circumstance, in order to access the box, guests must execute a *Surrender Form* ([Exhibit B](#)). Upon receipt of the executed Surrender Form, the box should be opened in the presence of a GSA or Safe Deposit Box Attendant (or Designee if such position does not exist) and the Manager-On-Duty (MOD). If the box is found empty, an affidavit to that effect is to be executed by the "Designee" and signed by the witness. In the event property is found in the box, the box is to be immediately re-locked, without disturbing the property, and the key placed in a sealed envelope. A witness will sign across the seal of the sealed envelope at the time the envelope is sealed.

An appropriate affidavit shall be executed by "Designee", and signed by a witness reciting the fact that the box contains property. The guest is to be advised without delay and requested to remove the contents and surrender the box or to forward a Power of Attorney for the guest's representative to do so and to sign another *Surrender Form* ([Exhibit B](#)) on the guest's behalf. The General Manager shall request local counsel to determine that the Power of Attorney is proper and that the guest's representative has proper and adequate identification.

Key Received from Messenger

If a key is tendered by a messenger, the messenger should be requested to return the key to the guest and request the guest to come in personally. If the messenger states that the guest is unable to come in personally and (A) the messenger states that the box is empty, the guest should be requested to execute and return a *Surrender Form* ([Exhibit B](#)), and (B) if the messenger states that there are contents in the box, the guest should be requested to execute and forward a Power of Attorney authorizing his/her representative to surrender the box and execute a *Surrender Form* ([Exhibit B](#)).

The hotel should follow the same procedures as listed under Key Received by Mail above regarding the determining of validity of the Power of Attorney, the opening of the box and the preparation of the affidavit.

Key and Box Audits

The quarterly audit by the "Designee" is to verify that duplicate keys for safe deposit boxes are not being maintained, that lost keys are being traced promptly, locked boxes have not been abandoned and that prescribed procedures relating to lost keys, lock changes and personnel assignments and training are being adhered to.

Keys and Boxes

In the event a safe deposit box key is not surrendered upon checkout, and the guest forgets to retrieve the contents of the box they shall be contacted by letter (certified mail, return receipt requested) and requested to surrender the box. If the guest does not respond within 30 days, the hotel is to proceed to dispose of the contents in accordance with state law and advice of counsel. There must be witnesses to the opening of the box and an affidavit prepared as indicated. This same procedure is to be followed in cases where the key is returned but the guest will not follow the prescribed in-person or mail surrender procedures.

G. Assignment of Safe Deposit Boxes

Identification

The GSA or Safe Deposit Box Attendant (or other team member acting in this role) is to verify that the applicant for safe deposit box is a registered guest by appropriate government issued identification. Safe deposit boxes are not to be issued to non-registered guests without the General Manager's approval.

Safe Deposit Agreement

Upon assignment of a safe deposit box, the guest should be requested to read the *Safe Deposit Agreement* ([Exhibit A](#)). The guest is to complete and sign the Agreement in the presence of the attendant. The Safe Deposit agreement is to be time stamped once the guest has stored his or her valuables in the box, and the number of the box is to be written in the blank in the

upper right-hand corner of the receipt, which is attached to the envelope ([Exhibit C](#)). The key to the box and the receipt shall then be presented to the guest.

Team Members & Tenants

Safe deposit boxes shall not be assigned to team members for personal use or to tenants.

Surrender Process

File the safe deposit box records with the guest folios or in the appropriate field of the Property Management System rather than a separate file, in order to remind guests who have used a safe deposit box to remove their valuables prior to departing the property. Upon the guest's surrender of a safe deposit box and key, the guest is to be requested to execute the surrender of safe deposit box form ([Exhibit B](#)). After the box is surrendered, the envelope containing Exhibit's A and B shall be sent to the Designee. These records will be retained in accordance with the Hilton Records Management Policy HWI-LG-010.

H. Access Procedure

General / Measures for protection against loss during access are:

- Require adequate identification.
- Handle the guard key with caution and the customer's key in full view of the guest.
- Ensure that no one is in the safe deposit box area unless accompanied by the attendant.

Verify Access / Verify the guest's identity before access is granted:

Signature

The *Access Slip* ([Exhibit D](#)) is to be signed in the presence of the attendant, who compares it with the signature on the *Safe Deposit Agreement* ([Exhibit A](#)).

Stating Mother's Maiden Name

If there is doubt regarding the identity of the guest, request the guest to state his/her mother's maiden name and compare it with the name on the *Safe Deposit Agreement* ([Exhibit A](#)).

Access Slips

Access slips are to be time stamped for every access regardless of the frequency and regardless of how well the attendant knows the guest. A spouse or other member of a family or the box holder's representative regardless of how well known, is not to be granted access to the box unless such person's signature is on the *Safe Deposit Agreement* ([Exhibit A](#)). The attendant must understand that no exception shall be made to this procedure. *Access Slips* ([Exhibit D](#)) shall be put in the *Safe Deposit Agreement* ([Exhibit A](#)) envelope and should be retained according to the Hilton Records Management Policy HWI-LG-010.

Access to Safe Deposit Box

The following procedure is established to reduce the risk of unauthorized access:

Attendant shall accompany guest into the safe deposit box area and remain with them until they leave.

Attendant shall insert the guard key into the lock and thereafter, take the guest's key and unlock the guest's box being careful that the guest always has the opportunity to observe their key and their safe deposit box.

Attendant shall remove and hand the key to the guest. If possible, the guest shall personally remove the container from the safe deposit box. If not, the container shall be handed to the guest. The attendant will remain with the guest while in the safe deposit area.

Attendant shall not handle contents of the container, acknowledge, or take notice of the amount or type of valuables, nor give a receipt for valuables placed in a safe deposit box.

If possible, the guest shall insert the container into the safe deposit box. If not, the attendant shall insert the container into the box. The attendant will insert the guest's key, lock the box and return the guest's key, being careful that the guest always has the opportunity to observe the key and container while in the attendant's possession.

I. Special or Unusual Access

Court orders for access to safe deposit boxes are to be referred to the General Manager. The General Manager will consult with legal counsel prior to granting box access unless he/she has received specific legal instructions regarding compliance with this type of access.

Requests for access to safe deposit boxes based upon a telephone call or telegram shall not be allowed under any circumstances. A letter or fax requesting access should not be recognized unless it is a proper authorization (see section H on keys received by messenger and by mail).

No information regarding a guest's safe deposit box should be given over the telephone or to any person other than the box holder or his/her legally designated agent.

POSTING OF NOTICE (*North America Region Hotels Only*)

Each hotel must post a copy of the statutorily required notice relating to innkeeper's liability and the availability of safe deposit boxes in the following locations:

On the inside of each guestroom entrance door (may be a separate sign or combined with the emergency procedures information but the sign size and font size must conform to state requirements where such are specific.

At the front desk and other registration areas.

Any additional locations required by applicable local or state laws. Please consult with the corporate legal department regarding posting requirements applicable to individual states.

The postings required above should be permanently installed (e.g. affixed to a wall or desk) conspicuous and laminated or protected to avoid defacement.

GUESTROOM SAFES

Guestroom safes are an amenity for guests who wish to store their property in their room.

Guestroom Safe Disclaimer (Exhibit F) must be conspicuously posted on or adjacent to the safe to provide notice to guests that they will be waiving their right to recover losses for items placed in the guestroom safe rather than the hotels safe deposit boxes.

The design, style and manufacturer of guestroom safes must be approved by the Director – Global Safety and Security. Approved equipment is available through Hilton Supply Management. The guestroom safe may be of the stand-alone style or be mounted inside an armoire or mini-bar. The standalone style safe must be securely fastened to a wall or floor within the closet of the guestroom. For those safes mounted inside an armoire or mini-bar, the entire fixture must be securely fastened to a wall or floor to prevent easy removal.

Operating instructions for the guestroom safe must be clearly posted on or adjacent to the safe. The instructions must include whom the guest can call if they have difficulty opening the safe and any cost associated with the use of the safe.

SAFE OVERRIDE DEVICE

The safe override device demands the same level of protection afforded to hotel keys. The storage, issuing, and turn-in of the override device must follow the same procedures outlined in the hotel's [Key Control Policies](#) and the procedures outlined in the above sections regarding Safe Deposit Boxes. At a minimum, the override device must be controlled as an emergency key in accordance with Electronic Lock System.

GUIDELINES FOR OPENING A GUESTROOM SAFE WITH THE OVERRIDE DEVICE (OCCUPIED GUESTROOM)

The following guidelines are intended to assist the hotel and guest in the event the guestroom safe combination is forgotten or misplaced.

Upon notification from a guest that assistance is needed with the opening of a guestroom safe, the individual responsible for guestroom safes or their designated representative will obtain the override device and respond to the guestroom.

No guestroom safe will be opened without the registered guest present and properly identified.

Special care should be exercised in suite configurations where multiple guests occupy the same room.

The safe should only be opened for registered guests.

A notation will be included in the Manager on Duty Shift Report and/or the Security Activity Report briefly describing the circumstances surrounding the opening of the safe.

GUIDELINES FOR OPENING A GUESTROOM SAFE WITH THE OVERRIDE DEVICE (UNOCCUPIED GUESTROOM)

The following guidelines are intended to assist the hotel in the event a locked guestroom safe is discovered in an unoccupied room. Housekeepers should be instructed to check the safe's status (safe open & empty, safe closed) a part of their normal routine when servicing a vacant room.

Upon notification from the Housekeeping Department that a locked safe has been discovered in a vacant room, the individual responsible for guestroom safes or their designated representative and a member of management will obtain the override device and respond to the guestroom.

Upon verifying that the guestroom is vacant, the safe will be opened using the override device.

If the safe is found to contain valuables, the contents will be inventoried and treated in the same manner as lost & found articles. Contents should be placed in a safe deposit box until the prior guest can be notified and positive identification of contents made.

A notation will be included in the Manager on Duty Shift Report and/or the Security Activity Report briefly describing the circumstances surrounding the opening of the safe without divulging the contents of the safe.

RELATED DOCUMENTS, TOOLS AND TEMPLATES**Policies & Procedures Location**

Design and Construction Standards
Hilton Records Management Policy HWI-LG-010
FP-OPSFIN-019 Safety Deposit Box Audit Policy
Key Control Procedures
Lost & Found Property Procedures
Safety Deposit Box Audits
Risk Management Safety and Security Site

APPENDIX

EXHIBIT A

SAFE DEPOSIT AGREEMENT

In consideration of _____ Hotel (Hotel) granting to the undersigned (Guest) the use of a safe deposit box, Guest agrees to the following terms and conditions of use of Hotel's safe deposit facilities:

Hotel has no duplicate keys to safe deposit box issued to Guest. In the event Guest shall lose key to his/her safe deposit box, Guest will notify Hotel immediately and the expense of opening and replacing the lock shall be paid at once by Guest. The cost to open a box is _____.

Hotel may in its sole discretion determine the hours when Guest may obtain access to his/her safe deposit box, and required reasonable advance notice from Guest of his/her intention to gain access.

Access to Guest's safe deposit box shall be granted only to the Undersigned. Proper lawful identification will be required to access the Guest's safe deposit box.

If Guest fails to surrender possession of his/her safe deposit box and key upon his/her departure, Hotel may dispose of the unclaimed property in accordance with state law. Guest will hold Hotel harmless in the event of such disposition.

Guest acknowledges receipt of one key and a copy of this agreement.

Guest has read and agrees to the terms of this Agreement.

LAW MAY LIMIT HOTEL LIABILITY FOR VALUABLES PLACED IN A SAFE DEPOSIT BOX.

Date	Signature of Guest
Room Number	Guest's Name (please print)
Check-out date	Signature of Witness
Guest's Business Address:	Guest's Home Address:
Safe Deposit Box Number:	Guest's Mother's Maiden Name
Date and Time Issue	Guest Service Agent/Safe Deposit Box Attendant

EXHIBIT B

SURRENDER OF SAFE DEPOSIT BOX

Guest's Name (please print)

Room Number

Box Number

I hereby surrender key to safe deposit box identified above, acknowledge that all valuables have been withdrawn from the box and release the Hotel, its owners, affiliates, agents and team members from all liabilities in connection there with.

Signature of Guest

Date

Note to Safe Deposit Attendant: When a safe deposit box is released, the Access Slips must be put in this envelope for permanent filing.

ATTENDANT'S STATEMENT

I have received the guest's safe deposit key and have placed the Access Forms in this envelope and have sealed it.

Guest Service Agent/Safe Deposit Box Attendant

Date

EXHIBIT C

GUEST RECEIPT

GUEST RECEIPT
KEY & BOX NO. _____

SAFE DEPOSIT AGREEMENT

In consideration of the _____ Hotel (Hotel) granting to the undersigned (Guest) the use of a safe deposit box, Guest agrees to the following terms and conditions of use of Hotel's safe deposit facilities.

Hotel has no duplicate keys to safe deposit box issued to Guest. In the event Guest shall lose key to the safe deposit box, Guest will notify Hotel immediately and the expense of opening and replacing the lock shall be paid by Guest.

Hotel will maintain reasonable hours for access to safe deposit boxes but at certain times may require reasonable notice from Guest of intention to gain access.

Access to Guest's safe deposit box shall be granted only to the Undersigned. Proper lawful identification will be required to access the Guest's safe deposit box.

If Guest fails to surrender possession of the safe deposit box and key upon departure, Hotel may dispose of the unclaimed property in accordance with state law. Guest will hold Hotel harmless in the event of such disposition.

Guest acknowledges receipt of one key and a copy of this agreement. Guest has read and agrees to the above terms.

LAW MAY LIMIT HOTEL LIABILITY FOR VALUABLES PLACED IN SAFE DEPOSIT BOX.

EXHIBIT D**SAFE DEPOSIT BOX ACCESS FORM**

PLEASE SIGN THIS FORM FOR ACCESS TO YOUR
SAFE DEPOSIT BOX NUMBER _____

Name of Guest (please print)_____
Signature of Guest_____
Mother's Maiden Name_____
Name of Witness_____
Signature of Witness_____
Room Number_____
Guest Service Agent/ Safe Deposit Box Attendant_____
Date_____
Time**EXHIBIT E****WAIVER OF RIGHTS**

In consideration of the _____ Hotel granting to _____ (user of safe deposit box) use of a safe deposit box _____ hereby agrees to indemnify, defend and hold harmless the _____ Hotel, Hilton Worldwide, Inc., its parents, subsidiaries and affiliates and their representatives, officers, directors, team members and agents (collectively the "Hilton Indemnitees") against all claims, losses or damages to persons or property including attorney's fees arising out of or caused by the use of the safe deposit box hereunder, including, to the extent permitted by law, any such liability resulting from or caused by the negligence of the Hilton Indemnitees or any of them.

EXHIBIT F**DISCLAIMER**

This safe is provided for your convenience only. It does not afford the same protection as, and is not intended as a substitute for or replacement of, the safe deposit box provided in the lobby of the hotel for the safekeeping of your valuables. We encourage you to use the safe deposit boxes in the hotel lobby. The liability of the hotel for loss of any of your valuables is controlled and limited by law. The applicable provisions of the law are posted or summarized in notices posted in your room and/or various public rooms of the hotel. By putting your valuables in this safe, rather than in a safe deposit box in the lobby, you will be waiving your right to recover your loss if any of your valuables are lost or stolen. Should you have any questions regarding the use of the in room safe or the safe deposit boxes in the hotel lobby, please contact the hotel's Director of Security or the Assistant Manager who are authorized to assist you.